

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

I.C.A. No.22041/2025

Shahbaz Akmal Jandran **VS.** Province of Punjab through Director
General, Excise and Taxation, Lahore
etc.

S. No. of order/ proceedings	Date of order/ Proceedings	Order with signatures of Judge, and that of parties or counsel, where necessary
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15.04.2025	Mr. Nadeem Sarwar, Advocate for the appellant. Rana Shamshad Khan, Additional Advocate General, on Court’s call.
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Ch. Muhammad Iqbal. J: This Intra Court Appeal is directed against order dated 10.03.2025 whereby learned Single Judge in Chamber allowed Writ Petition [No.70457/2023] of the respondent No.1 and set-aside the impugned orders of respondent No.2/ the Punjab Information Commission, Lahore.

2. The abbreviated facts of the case are that the appellant filed two complaints through email dated 12.04.2023 under Article 19-A of the Constitution of the Islamic Republic of Pakistan, 1973 read with Section 3 of the Punjab Transparency and Right to Information Act, 2013 before respondent No.2 / the Information Commission [hereinafter referred as “Commission”] seeking information of Excise & Taxation Department regarding Excise & Taxation Officer, Inspectors, Zone Numbers and Names of Property Circles, etc. The Commissioner vide order dated 12.04.2023 directed the

respondent-department to provide the sought for information but the said order was partially complied. The respondent-department was again directed to comply with of above direction. In compliance of the order dated 07.08.2023, the respondent-department provided further information regarding number of appeals admitted, decided, remanded and pending cases etc. The appellant vide e-mail dated 17.08.2023 requested the respondent-department to provide column-wise annotated information including certain information about property tax payer. The Commission vide order dated 28.08.2023 directed the respondent No.1/ department to provide two sets of certified copies of the information to the appellant. The Information Officer of the respondent No.1 / department intimated the Commission that information requested by the appellant is exempted under Section 13(1)(b) of the Act *ibid* as it involves privacy of individual taxpayers. The Commission / respondent No.2 vide order dated 05.10.2023 directed the respondent No.1-department to provide information as requested by the appellant. The respondent No.1 / Department challenged the orders dated 07.08.2023, 28.08.2023, 25.09.2023 and 05.10.2023 of the Commission through Writ Petition No.70457/2023 which was allowed by the learned Single Judge in Chamber vide order dated 10.03.2025. Hence, this appeal.

3. Arguments heard. Record perused.

4. The right to information is primarily intended to give access to the citizen to the information gathered and maintained by public authorities. This right is intended to ensure that government is functioning in a transparent manner and accountable to the people it serves.

By allowing individuals to have access to the information qua government activities, income, expenditure, policies, and decision-making, helps to prevent corruption, abuse of power, and promotes better governance. As every law has its own exception as such Act ibid is also embosomed with certain exception as enunciated in Section 13(1)(b) of the Act ibid that any request to provide information which violates the privacy of an individual can validly be withheld. This is rooted in the idea that while the public has the right to know about the workings of government, the life of a private individual should be respected and protected. The privacy directly relates to an individual's personal life, such as their name, address, phone number, family details, medical history, financial status, etc. which has validly been safeguarded in almost every law.

5. The Religion of Islam, undoubtedly is a complete and comprehensive code of life which provides full protection to privacy and confidentiality of every individual. It also emphasizes on the importance as a mandatory injunction qua spying on others or unwarranted intrusion into their private personal affairs. In this regard, a straightaway reference is made to Ayat No.12 of Surah Al-Hujurat. The translation of relevant portion of said Ayat in Urdu language is reproduced as under:

"اے ایمان والو! دور رہا کرو بکثرت بدگمانیوں سے بلاشبہ بعض بدگمانیاں گناہ ہیں اور نہ جائوسی کیا کرو اور ایک دوسرے کی غیبت بھی نہ کیا کرو۔"

سورت الحجرات: آیت نمبر 12

(ترجمہ: پیر محمد کرم شاہ: ضیاء القرآن پبلیکیشنز، لاہور)

The Last Holy Prophet Muhammad (ﷺ) has also guided in this regard. For ready reference, translation of two Hadiths is reproduced as under:

"حضرت ابو ہریرہ رضی اللہ عنہ سے مروی ہے کہ رسول اللہ ﷺ نے فرمایا: (برے) گمان سے بچو کیونکہ برا گمان جھوٹی بات ہے۔ ایک دوسرے کی ٹوہ نہ لگاؤ۔ ایک دوسرے کی جاسوسی نہ کرو، قیمت چڑھانے کے لئے بولی نہ دو، ایک دوسرے سے حسد نہ کرو، ملاقات کے وقت پیٹھ نہ پھیرو اور اللہ کے بندے بن کر بھائی بھائی بن جاؤ۔"

(بخاری شریف: جلد سوم: حدیث نمبر 5606)

ایڈیشن ستمبر 2014، بار چہارم: ضیاء القرآن پبلیکیشنز، لاہور)

"حضرت ابو ہریرہ سلمی رضی اللہ عنہ نے بیان کیا کہ رسول اللہ ﷺ نے ارشاد فرمایا: اے ان لوگوں کے گروہ جو اپنی زبان کے ساتھ ایمان لائے ہو اور ابھی تک ایمان ان کے دل میں داخل نہیں ہوا، تم مسلمانوں کی غیبت نہ کرو۔ کیونکہ جس نے ان کے عیوب تلاش کیے (اور ان کی عزت میں دست درازی کی) کوشش کی تو اللہ تعالیٰ اس کے عیوب کا پیچھا کرے گا اور جس کے عیوب کو اللہ تعالیٰ نے تلاش کیا، تو یقیناً وہ اسے اس کے گھر میں ہی رسوا کر دے گا۔"

(سنن ابی داؤد: جلد سوم: حدیث نمبر 4236)

ایڈیشن سوم، فروری 2015: ضیاء القرآن پبلیکیشنز، لاہور)

Further the solemnity of privacy of a person has been guaranteed under Article 14(1) of the Constitution of the Islamic Republic of Pakistan, 1973 [hereinafter referred as "Constitution"] which is reproduced as under:

"14 (1) The dignity of man and, subject to law, the privacy of home, shall be inviolable."

The Hon'ble Supreme Court of Pakistan in a recent pronouncement titled as *Muhammad Nawaz Vs. Additional District and Sessions Judge and others* (PLD 2023 SC 461) has held that the expression 'privacy of home' used in Article 14 of the Constitution is not restricted to the physical house of a person but it covers the entire treasure of his personal life, as the privacy attaches to the person, not to the place where it is associated. For ready reference, relevant portion of the judgment (supra) is reproduced as under:

“6. The *right to privacy* involves the protection of individuals from unwarranted intrusion into their personal lives. It safeguards an individual's personal information, communications, family life, and other aspects of their private sphere from unjustified interference by the government, organizations, or other individuals. Privacy is crucial for maintaining personal autonomy, as it allows individuals to make choices and engage in activities without fear of surveillance, judgment, or unauthorized disclosure of their personal information. Though the right to privacy is an integral part of the right to life and liberty, it has been elevated to a separate and independent fundamental right by Article 14 of our Constitution. Privacy, which is the ultimate expression of the sanctity of a person, represents the core of the human personality. It recognises the ability of each person to make choices and to take decisions on matters intimate and personal to him, and thus protects for him a zone of choice and self-determination. We may also underline that the expression, “privacy of home”, used in Article 14 is not restricted to the physical house of a person but covers the entire treasure of his personal life, as the privacy attaches to the person, not to the place where it is associated.”

Another reliance is placed on judgments cited as *Ghulam Mustafa Vs. Judge Family Court and another* (2021 CLC 204) and *M. D. Tahir, Advocate Vs. Director, State Bank of Pakistan, Lahore and 3 others* (2004 CLD 1680).

6. Admittedly, the substantial information as permissible under the Punjab Transparency and Right to Information Act, 2013 was provided to the appellant by the respondent No.1 / department through the Commission/ respondent No.2. The appellant made request for getting information qua disclosures of names of taxpayer and information regarding individual properties owned by different taxpayers but imparting of requisite information is subject to an unambiguous consent of said individual otherwise request could validly be regretted under Section 13(1)(b) of the Act *ibid*. For ready reference, aforesaid provision is reproduced as under:

“13. Exceptions.– (1) A public information officer may refuse an application for access to information where disclosure of the information shall or is likely to cause harm to–

(a)

(b) a legitimate privacy interest, unless the person concerned has consented to disclosure of the information;”

The aforesaid provision gives the power to Public Information Officer to refuse the application for access to information where such disclosure of information is likely to harm the ‘legitimate privacy or interest of individual unless the person concerned has consented to disclosure of information. The term ‘legitimate interest’ has not been defined in the Act *ibid* as such its literal meaning are being taken from the dictionaries. In Justia Legal Dictionary, it has been defined as under:

“A preference to be free from interference or intrusion by the government in matters that one can reasonable expect to be private.”

Merriam-Webster Dictionary of Law defines the terms in following words:

“An interest in freedom from governmental intrusion into matters in which one has a reasonable expectation of privacy.”

In Words and Phrases, Volume No.33-C, it has been defined as:

“Privacy interest in constitutional lexicon, consists of reasonable expectation that uninvited and unauthorized persons will not intrude into particular area: one may freely admit guests of one’s choosing, or be legally obliged to admit specific person, without sacrificing one’s right to expect that space will remain secure against all others.”

From the above definitions, it is very much clear that the ‘privacy interest’ is relating to reasonable expectation of

privacy being free from intrusion/ interference and when the word 'legitimate' is added as a prefix, then legal cover or shield is provided to such interest. Thus, it can conveniently be held that right to information under Article 19-A of the Constitution of the Islamic Republic of Pakistan, 1973 and Punjab Transparency and Right to Information Act, 2013 does not extend to any 'legitimate privacy interest' of an individual guaranteed under Articles 9 and 14 of the Constitution and protected under Section 13(1)(b) of the Act *ibid*.

7. The accumulative resume of the above is that the Punjab Information Commission in blatant excess of its jurisdiction has passed the orders dated 07.08.2023, 28.08.2023, 25.09.2023, 05.10.2023 and final order dated 25.10.2023 whereby the respondent No.1-department was directed to provide private information of the individuals to the appellant, thus the learned Single Judge in Chamber has rightly allowed the constitutional petition of the respondent No.1 and set aside the aforesaid orders being violative to the above said provision of law and same is immuned from any inference by this Court through the instant Intra Court Appeal.

8. It would be important to mention here regarding the conduct of the appellant that he filed different complaints before the Punjab Information Commission but he did not appear before the said authority on 25.09.2023, 05.10.2023 and 25.10.2023. Even when the respondent No.1 assailed the orders of the Commission including the aforesaid orders through constitutional petition, even then appellant did not appear before the learned Single Judge in Chamber which shows

his lack of bonafide and the object of seeking such personal information of honourable citizen by using shoulder of the State institution, is tainted with malafide which should be dismantled in the inception with strict reprimand.

9. Resultantly, this intra court appeal being devoid of any merits is hereby **dismissed** in *limine*.

10. However, it is observed that the appellant has dragged the State institutions in futile and frivolous litigation thus by relying on the dicta of the Hon'ble Apex Court rendered in Capital Development Authority, CDA through Chairman, CDA, Islamabad Vs. Ahmed Murtaza and another (2023 SCMR 61), Province of Punjab through the Deputy Commissioner, Collector District Gujranwala and others Vs. Zulfiqar Ali and another (2024 SCMR 22) and Javed Hameed and others Vs. Aman Ullah and others (2024 SCMR 89) appellant is burdened with special cost of Rs.10,00,000/- which should be recovered as money decree in favour of the respondent No.1.

(Malik Waqar Haider Awan)
Judge

(Ch. Muhammad Iqbal)
Judge

Approved for reporting.

Judge

Judge